has a personality; but it has a personality capable only of very definitised development.

Why is it so limited? English lawyers, at any rate, have no doubt upon this question. The corporation is the creature of the state.[7] Its will is a delegated will; its purpose exists only because it has secured recognition. And, so the lawyers will tend to imply, it is in truth a fictitious thing. Persons, they know well enough, are human beings; the corporation is invisible and *in abstracto*.[8] It has no human wants. "It cannot," so an American judge has said,[9] "eat or drink, or wear clothing, or live in houses"; though hereto a sceptic might retort that a theory of domicile has given some trouble, and ask if there is not a solid reality about the dinners of the Corporation of London. "It is," said Marshall, C. J.,[10] "an artificial being, invisible, intangible, and existing only in contemplation of law" . . . "it is precisely," he says again, "what the act of incorporation makes it." "Persons," said Best, C. J., in 1828,[11] "who, without the sanction of the legislature, presume to act as a corporation, are guilty of a contempt of the King, by usurping on his prerogative."

Nor are the textbook writers less definite. "They are legal persons," says Austin,[12] "by a figment, and for the sake of brevity in discourse." "To the existence of all corporations," wrote Kyd in 1793,[13] "it has long been an established maxim that the King's consent is absolutely necessary." "Ten men," notes Professor Salmond satirically,[14] "do not become in fact one person because they associate themselves together for one end any more than two horses become one animal when they draw the same cart." "The most marked distinction," Mr. Holland has written in a famous textbook,[15] "between abnormal persons is that some are natural . . . while others are artificial . . . which are treated by law for certain purposes as if they were individual human beings."

[7] *I. e.*, they accept the "concession" theory, so called. That they have accepted the "fiction theory" is denied by Sir F. Pollock in the LAW QUART. REV. for 1911.

[8] Sutton's Hospital Case, 10 Co. 13 (1612).

[9] Darlington *v.* Mayor, etc. of New York, 31 N. Y. 164, 197 (1865).

[10] Dartmouth College *v.* Woodward, 4 Wheat. (U. S.) 518, 636 (1819).

[11] Duvergier *v.* Fellows, 5 Bing. 248, 268.

[12] JURISPRUDENCE, Lect. XII.

[13] 1 TREATISE ON CORPORATIONS, p. 41.

[14] JURISPRUDENCE (ed. of 1902), p. 350.

[15] JURISPRUDENCE, 11 ed., p. 385.